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BEFORE THE
LOUISIANA PUBLIC SERVICE COMMISSION

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BEAUREGARD ELECTRIC COOPERATIVE, INC. *EX PARTE*, APPLICATION FOR APPROVAL OF INITIAL REVENUE ADJUSTMENT, APPROVAL OF FORMULA RATE PLAN, APPROVAL OF MODIFICATIONS TO STANDARD TERMS AND CONDITIONS AND ASSOCIATED RATE SCHEDULES, AND REQUEST FOR INTERIM RATE RELIEF	)	DOCKET NO. U-37483

PEREMPTORY EXCEPTION OF NO RIGHT OF ACTION AND MOTION TO STRIKE INTERVENTION

Beauregard Electric Cooperative, Inc. ("BECi" or the "Cooperative") respectfully files this Peremptory Exception of No Right of Action and Motion to Strike Intervention, seeking the strike the intervention (the "Intervention") filed by Mr. Brian Zelenak ("Zelenak") on February 3, 2025, and to dismiss Zelenak as a party to this proceeding, for the reasons stated below and supported by the accompanying Memorandum in Support of this filing.

1.

BECi filed its *Application for Approval of Initial Revenue Adjustment, Approval of Formula Rate Plan, Approval of Modifications to Standard Terms and Conditions and Associated Rate Schedules, and Request for Interim Rate Relief* (the "Application") on January 14, 2025. In the Application, BECi included requests for 1) an initial revenue adjustment; 2) the implementation of a formula rate plan ("FRP"); 3) modifications to BECi's Standard Terms and Conditions/Rate Schedules; and 4) a request for interim rate relief. All of BECi's requests in the Application involve issues that may impact BECi member/ratepayers only.

2.

Zelenak is not and has never been a member/ratepayer of BECi and instead is a former BECi employee (General Manager) and resident of Wisconsin. In the Intervention, Zelenak asserted multiple claims of waste, mismanagement, and theft by BECi board members and employees, stating as a basis for the Intervention is that he is a "whistleblower" and is "uniquely qualified" as the prior General Manager to identify and expose alleged inappropriate past practices. While sensational, none of the claims made by Zelenak state a justiciable or administratively cognizable interest of how any of the requests made by BECi in the application might have any impact on him.

3.

As such, Zelenak is not a proper intervenor in this proceeding, and this peremptory exception of no right of action and motion to strike intervention should be granted, as stated and supported in more detail in the accompanying Memorandum in Support.

WHEREFORE, Beauregard Electric Cooperative, Inc., prays that this Peremptory Exception of No Right of Action and Motion to Strike Intervention be granted and that the Intervention filed by Mr. Brian Zelenak be hereby stricken, with being Zelenak dismissed as a party to this proceeding.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that I have on this 1st day of October 2025, served copies of the foregoing pleading upon all known parties to this proceeding by email.

KYLE C. MARIONNEAUX